

DATA PROCESSING AGREEMENT (DPA) — TEMPLATE PER IAPP MODEL DPA

This Data Processing Agreement (this “Agreement”) is entered into as of the Effective Date by and between the Customer (the “Controller”) and the Processor (the “Processor”) and forms an integral part of the Principal Agreement between the parties. Capitalised terms not defined in this Agreement have the meanings given in Regulation (EU) 2016/679 (the “General Data Protection Regulation” or “GDPR”) and in the IAPP Model Data Processing Agreement template.

1. Designation of the Parties. The parties acknowledge that, for the purposes of this Agreement, the Customer is the Controller and the Processor is the Processor of Personal Data, each as defined in the GDPR. The Processor shall process Personal Data only on the documented instructions of the Controller, including with regard to transfers of Personal Data to a third country, and shall treat Personal Data as confidential in accordance with Article 28(3)(b) of the GDPR.

2. Sub-processor Authorisation. The Processor shall not engage another processor without prior specific or general written authorisation of the Controller. Where the Controller gives general written authorisation, the Processor shall inform the Controller of any intended changes concerning the addition or replacement of other processors, thereby giving the Controller the opportunity to object to such changes on reasonable data-protection grounds.

3. Sub-processor Obligations. Where the Processor engages another processor for carrying out specific processing activities on behalf of the Controller, the same data protection obligations as set out in this Agreement shall be imposed on that other processor by way of a contract. The Processor shall remain fully liable to the Controller for the performance of that other processor's obligations.

4. International Transfers. The Processor shall not transfer Personal Data to a third country or an international organisation unless an adequate level of protection is ensured by way of an adequacy decision of the European Commission, the Standard Contractual Clauses (Module Two) set out in Commission Implementing Decision (EU) 2021/914, or any other lawful transfer mechanism recognised under Chapter V GDPR, in line with the IAPP Model DPA Section 4 transfer mechanism clause.

5. Personal Data Breach Notification. The Processor shall notify the Controller of a Personal Data Breach without undue delay and in any event within twenty-four (24) hours of becoming aware of the Personal Data Breach. The notification shall describe the nature of the Personal Data Breach, the categories and approximate number of data subjects and records concerned, the likely consequences, and the measures taken or proposed to address the breach.

6. Audit and Return. The Processor shall make available to the Controller all information necessary to demonstrate compliance with the obligations laid down in this Agreement, and shall allow for and contribute to audits, including inspections, conducted by the Controller or another auditor mandated by the Controller on an annual basis. Upon termination of the services, the Processor shall, at the choice of the Controller, return all Personal Data to the Controller and delete existing copies, and shall provide written certification of such deletion upon request.